

STATE OF NEW YORK

8938--B

2025-2026 Regular Sessions

IN ASSEMBLY

July 16, 2025

Introduced by M. of A. EACHUS -- read once and referred to the Committee on Social Services -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public health law, in relation to requiring that two electronic benefit transfer credit or debit cards be issued to certain households receiving special supplemental nutrition program for women, infants and children (WIC) benefits

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The section heading of section 2507 of the public health
2 law, as amended by chapter 12 of the laws of 2017, is amended and a new
3 subdivision 3 is added to read as follows:

4 Special supplemental nutrition program for women, infants and chil-
5 dren[~~;~~ ~~specialty formula~~].

6 3. Any electronic benefit transfer services for WIC benefits shall
7 ensure that two electronic benefit transfer credit or debit cards are
8 issued for use by any recipient household where such additional house-
9 hold member is either a parent, guardian or caretaker of the covered
10 infant or a spouse, domestic partner or parent of the covered mother.
11 No card shall be issued to any person under the age of eighteen unless
12 such person is a parent or guardian of a minor child.

13 (a) The department shall be responsible for any additional expenses
14 associated with the provision of additional electronic benefit transfer
15 cards.

16 (b) The department shall not reduce the availability or the level of
17 benefits provided to new or existing covered mothers, infants and chil-
18 dren in association with providing additional electronic benefit trans-
19 fer cards.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[~~-~~] is old law to be omitted.

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1 § 2. This act shall take effect on the one hundred eightieth day after
2 it shall have become a law. Effective immediately, the addition, amend-
3 ment and/or repeal of any rule or regulation necessary for the implemen-
4 tation of this act on its effective date are authorized to be made and
5 completed on or before such effective date.